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Provision of July 18, 2023

Register of provisions

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THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN the meeting held today, attended by

Prof. Pasquale Stanzone, president, Prof. Ginevra Cerrina Feroni, vice president, Dr. Agostino Ghiglia and Attorney Guido Scorza, members, and Cons. Fabio Mattei, secretary general;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data, as well as the free movement of such data and repealing Directive 95/46/EC (General Data Protection Regulation, hereinafter "Regulation");

HAVING REGARD TO the Code on the protection of personal data (Legislative Decree of June 30, 2003, n. 196), as amended by Legislative Decree of August 10, 2018, n. 101, containing provisions for the adaptation of the national legislation to the aforementioned Regulation (hereinafter "Code");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the secretary general pursuant to Article 15 of the Guarantor's Regulation n. 1/2000;

REPORTING Prof. Ginevra Cerrina Feroni;

WHEREAS

1. THE INSTRUCTIONAL ACTIVITY CARRIED OUT

With a complaint dated January 4, 2022, Ms. XX complained about receiving promotional SMS from the University e-Campus and the lack of response to repeated requests to exercise her rights. In particular, the complainant stated that she had sent, on July 16, 2021, a first request for the deletion of her personal data to the address indicated in the privacy notice; having received no response and continuing to receive unwanted SMS, she reiterated her request, sending it also to the address of the Data Protection Officer on November 1 and December 20, 2021. As the receipt of unwanted SMS persisted, Ms. XX turned to the Guarantor.

The Office then sent a request for information to the University via certified email on March 15, 2022, which went unanswered despite a reminder sent on May 10, 2022, to the addresses privacy@uniecampus.it and dpo@uniecampus.it. It therefore became necessary to notify the initiation of the procedure for the lack of response, which was carried out by the Special Privacy Unit of the Guardia di Finanza on July 7, 2022.

With a certified email dated July 28, 2022, the University submitted a defensive memorandum in which, without providing explanations regarding the lack of response, stated – attaching the relevant documentation – that a first response to Ms. XX had been provided on July 26, 2021, by XX s.r.l., qualified as co-controller of the processing, only to confirm the receipt of the request and promise a response shortly; on August 24, 2021, the same XX would have confirmed to Ms. XX the deletion of her data.

Regarding the origin of the data and the possibility of using it for promotional purposes, the University stated that the complainant had filled out an online form on June 21, 2016, related to the "Grandi Scuole" brand of XX Srl (a report of which was produced).

The same complaints of Ms. XX were presented to the Guarantor by Mr. XX with a complaint dated March 30, 2022, also directed to the University E-Campus. In this context, the complainant stated that he had received unwanted SMS and had repeatedly requested the deletion of his data (on December 10, 2019, and March 20, 2020) without obtaining satisfaction.

Again, the request for information sent by the Office on May 27, 2022, went unanswered, and it was necessary to instruct the Special Privacy Unit of the Guardia di Finanza to notify the initiation of the procedure for the lack of response (notification occurred on November 21, 2022).

With a certified email dated November 30, 2022, the University responded that the complainant's data had not been found in its databases and therefore presumed that the sending of the SMS had been

carried out by third parties, responsible for the processing, commissioned by e-Campus to carry out the campaigns. These third parties would have been informed of the complainant's request. On December 19, 2022, a hearing was held during which the University confirmed what had already been stated in the memoranda, asserting that, in its opinion, the documentation produced was to be considered adequate to remedy, albeit belatedly, the lack of response to the Guarantor (the reasons for which were not clarified).

The complaints contained in the two complaints did not represent isolated cases, as the Guarantor also received reports, largely directed to the University itself and shared with the Authority only for information, complaining about the receipt of unwanted SMS and the lack of response to the exercise of rights. These reports, although already in the possession of the data controller, were attached to the initiation of the procedure for subsequent evaluations.

Finally, on February 1, 2023, through the telematic service available on the Guarantor's website to report annoying telemarketing, a report was received from Ms. XX in which she regarding the receipt of unwanted phone calls, reiterates for six years, after that "... 6 years ago a contact of mine used my number to call them." This report has also been forwarded to e-Campus along with the initiation of the proceedings.

2. THE CONTESTATION OF VIOLATIONS

Given the lack of response to the request for information dated March 15, 2022, the Office prepared an act to initiate proceedings, notified to the e-Campus University through the Privacy Unit of the Guardia di Finanza on July 7, 2022, for the violation of Article 157 of the Code. Following this notification, the University responded via certified email on July 28, 2022, simultaneously requesting to be heard. The Office then sent a summons for the hearing scheduled for December 5. In a certified email dated December 1, 2022, the University communicated its inability to attend the hearing due to work commitments and requested a postponement. The hearing ultimately took place on December 19, 2022. Given the lack of response to the request for information dated May 27, 2022, the Office prepared an act to initiate proceedings, notified to the e-Campus University through the Privacy Unit of the Guardia di Finanza on November 21, 2022, for the violation of Article 157 of the Code. Following this notification, the University responded via certified email on November 30, 2022. After examining the aforementioned acts and finding violations of the regulations protecting personal data, the Office proceeded to contest them with the act to initiate proceedings dated February 14, 2023, prot. no. 26178/23, notified via certified email on the same date. Here, the motivations expressed in the aforementioned act are fully recalled, and the e-Campus University was contested for the violation of Articles 5, para. 1, lett. a) and lett. e); 5, para. 2; 6, para. 1, lett. a); 7, para. 1; 12; 13, para. 2, lett. a); 15; 17; 21; 24 of the Regulation as well as Article 130 of the Code, since the sending of promotional communications via SMS was found to have been carried out without the consent of the interested parties, the rights of deletion and opposition exercised by the complainants were not respected, the adoption of adequate security measures was not documented, and the retention periods of the data for promotional purposes were not correctly defined. This last act of contestation was followed by a defensive memorandum sent on March 15, 2023, which is also to be understood as fully recalled and reproduced here, in which the data controller justified the choices regarding the processing and provided responses regarding the individual reports transmitted with the act to initiate proceedings. Concurrently with the defensive memorandum, the University requested a hearing, to which the Office responded by setting the date for March 28, 2023. At 5:29 PM on the day before the hearing, the University communicated that it could not participate due to unforeseen professional commitments and requested a further postponement. The new date for the hearing was therefore set for April 4, 2023, but it went unattended without further communications from e-Campus.

3. LEGAL ASSESSMENTS

With reference to the factual profiles highlighted above, also based on the statements made by the e-Campus University during the investigation, for which the declarant is responsible under Article 168 of the Code, the following legal assessments are formulated.

3.1 Response to the exercise of rights by the interested parties

The complaints received, as well as the attached reports, attest to a systemic deficiency in the procedures that should guarantee responses to requests for the exercise of rights by the interested parties, considering that such requests, almost always sent to the contacts indicated in the privacy notice - and even to the Data Protection Officer - have been completely ignored even after repeated attempts. The responses provided to the individual complainants, produced in the defense phase, also demonstrate – as will be seen below – a total lack of interest in the requests received, which were responded to in a delayed and inadequate manner despite repeated reminders. In particular, the response provided regarding the case of Ms. XX, who would have received a response from the co-controller XX S.r.l., is not sufficient to absolve e-Campus of its responsibility regarding the obligation to provide a response. This is because, firstly, the response from XX did not contain any useful reference to help the interested party understand the co-controller relationship with e-Campus and the fact that she was responding on behalf of the latter; moreover, after the alleged deletion of the data on August 24, 2021, Ms. XX, continuing to receive unwanted SMS, submitted further requests to said University (on November 1 and December 20, 2021) that went unanswered. It is also noted that the privacy notice made available on the e-Campus website in February 2023 (at the time of the contestation of the violations referred to in the act of February 26, 2023, prot. no. 26178), did not provide any information regarding this co-controller relationship and any common contact point but only indicated the addresses (physical and email) of e-Campus as the contacts for requests for the exercise of rights by the interested parties. It is therefore reasonable to expect that the response should come from the e-Campus University, as the promotional messages were sent in its name and in its interest without any possibility for the complainant to understand the relationships between the two Companies. The Office of the Guarantor itself also used the addresses privacy@uniecampus.it and

dpo@uniecampus.it to informally urge a response to the request for information and has not received any feedback (nor an error message). Furthermore, regardless of the validity of the feedback conveyed through XX, it must be noted that the conduct complained of by Ms. XX has not been interrupted in any way, as she continued to receive unwanted SMS messages; therefore, her requests have effectively been completely ignored.

Additionally, it should be noted what was complained of by Mr. XX and other reporters, all forced to turn to the Authority because the requests to exercise their rights directed to the data controller – even repeatedly – had been completely ignored, despite in many cases being directed also to the Data Protection Officer.

In the memorandum dated November 30, 2022, addressed also to Mr. XX, e-Campus limited itself to stating that it had not found the data in its systems, having to "presume" that the sending was carried out by its partners (of which no details were provided). Nothing was stated regarding the lack of response to XX, who had also written repeatedly to the University using all available addresses and even the certified email address.

In the defensive memorandum dated March 15, 2023, the University provided feedback also regarding the other reports received, of which the outcomes are briefly reported as follows:

- a) In an email dated June 30, 2021, Mr. XX, complaining about the receipt of unwanted communications, requested e-Campus to know the origin of the data, including the documentation of the consent provided and the identification of any third parties who may have collected it, opposing further contacts; the University attached a response sent to XX on August 5, 2021, in which it limited itself to stating that it had followed up on the deletion of the data; the response, therefore, is not only late but also considered inadequate as it lacks the information requested by the interested party, who, in fact, reiterated his request to e-Campus on October 20, 2021, also complaining about continuing to receive unwanted messages;
- b) Regarding the report from Ms. XX, received by the Authority through the automated channel of the institutional website, e-Campus limited itself to stating that it had deleted the data, attaching a note of feedback sent to the reporter on February 27, 2023; again, no clarification was provided regarding the origin of the data, despite the interested party complaining about receiving phone calls after her phone

had been used to call the University 6 years prior;

c) Ms. XX complained about receiving unwanted SMS messages and the lack of response to the deletion requests sent to e-Campus, most recently also to the address of the Data Protection Officer on October 26, 2021; regarding this report, the University produced a certified email addressed to Ms. XX on March 16, 2022, in which it assured the deletion of the data; this feedback is also evidently (and unjustifiably) late;

d) In a certified email dated October 4, 2021, Mr. XX reiterated to e-Campus a deletion request already submitted on the previous August 9 and left unanswered; the University produced a confirmation of deletion sent to Mr. XX on December 1, 2021, also in this case without justifying the delay in any way;

e) Ms. XX requested three times the deletion of her data from the lists used for sending promotional SMS; the requests were made to e-Campus on February 26, 2021, March 29, 2021, and April 15, 2021. Attached to the defensive memorandum sent to the Authority, the University produced the confirmation of deletion sent to the reporter via email on May 7, 2021 (also this unjustifiably late, given that the first request was on February 26, 2021).

That said - considering that for evaluations regarding the lack of responses to the Authority reference is made to the following point 3.4 - it is noted that there is a violation of Articles 5, paragraph 1, letter a), 12, 15, 17, and 21 of the Regulation due to the lack of adequate and timely responses to the interested parties, resulting in their inability to exercise their rights of access to data, deletion, and opposition.

Furthermore, considering that the described facts indicate a total lack of technical and organizational measures to safeguard rights and taking into account that the University has not been able to justify the lack of responses to the interested parties and the Authority, a violation of Articles 5, paragraph 2, and 24 of the Regulation is also noted.

For these reasons, pursuant to Article 58, paragraph 2, letter d) of the Regulation, it is necessary to order the data controller to review its technical and organizational measures, including through the provision of appropriate instructions to those responsible for processing, in order to ensure that the requests of the interested parties are timely and suitable to meet their requests.

Moreover, considering the conduct exhibited in the cases examined, with a dissuasive intent, the conditions for the application of an administrative monetary sanction pursuant to Article 58, paragraph 2, letter i) of the Regulation are found.

3.2 Sending promotional communications without consent

All complaints received concerned the receipt of unwanted promotional communications (via SMS and in one case via telephone with an operator) regarding E-Campus services. In the case of the complainant XX, the University stated that it had acquired the data through the co-controller XX, following the completion of a

online form on June 21, 2016; in the initiation act of the procedure dated February 14, 2023, it was noted that the document produced to also document the specific consent to processing for promotional purposes (see attachment 5 to the memorandum of July 28, 2022) contained only a list of words and numbers aligned in an incomprehensible manner on a text sheet that could not be considered suitable to prove either the registration or, even less, the actual and specific willingness to receive promotional messages from E-Campus. In the subsequent defense memorandum, the University did not clarify anything regarding this contested aspect, and therefore the presence of prior consent remains undocumented.

Moreover, even if there had originally been a properly acquired consent, no legal basis could be invoked to justify the promotional messages received after the repeated objections of the interested party. Furthermore, it should also be noted that XX would have confirmed to the complainant the deletion of the data on August 24, 2021, but by January 2022, the interested party was still receiving unwanted SMS messages.

Similar considerations can also be made regarding the reports attached to the initiation act of the procedure for which, as detailed in the previous point, the University has never – in any case –

documented suitable consent nor clarified the origin of the data.

Also regarding the complaint made by Mr. XX – in light of the sending of promotional communications even after repeated objections – the University was unable to document the acquisition of an original consent, referring to alleged treatments entrusted to generic third parties responsible for processing.

Finally, concerning the report from Mrs. XX, the telephone number would have been acquired by E-Campus and intended for promotional activities only because it was used to call the University six years prior. On this aspect and, in general, on the origin of the data and the documentation of consent, E-Campus has never expressed itself despite being the subject of specific contestation by the Guarantor.

In the defense memorandum dated March 15, 2023, the University, in attempting a personal interpretation of the regulations that is entirely distant from the established framework, invoked its legitimate interest as a legal basis for sending promotional communications. It indeed observed that the Regulation admits the legitimate interest of the data controller as an alternative basis to consent “if the data subject, at the time and within the context of the collection of personal data, can reasonably expect that processing will take place for that purpose” and “in any case ensuring the exercise of the right to object by the data subject.”

While it remains impossible to invoke legitimate interest for sending promotional communications through electronic communication channels, as already clarified by the Guarantor (1) and specified below, the processing by E-Campus would not be lawful even within the framework it itself hypothesized because:

1) the data subjects could not in any way expect that processing would occur on the basis of legitimate interest since E-Campus's privacy notice stated (and still states) that the sending of commercial communications can occur “by virtue of expressed consent”; the same wording is also present in the privacy notice of XX (see attachment 6 to the memorandum produced by E-Campus on July 28, 2022) and, in fact, the University intended to justify the sending of communications to Mrs. XX by producing the document already mentioned above (attachment 5 to the same memorandum) with the intent of documenting the possession of suitable consent; it is also noted that many complainants have stated that they receive promotional messages without any prior relationship with E-Campus and, therefore, without any interest towards it;

2) regarding the obligation to ensure the exercise of the right to object, it has already been noted that none of the subjects who turned to the Guarantor received suitable feedback, continuing in some cases to receive unwanted messages for varying periods.

Regarding, more generally, the legal interpretation given by E-Campus concerning the usability of the legal basis of legitimate interest, the following should be observed. With respect to Recital 47 of the Regulation, which hypothesizes the use of legitimate interest in cases where data is processed for direct marketing activities, it should be noted that the legal value of recitals is purely interpretative and not prescriptive; this cannot be invoked in the specific case. It should indeed be remembered that promotional activities carried out through electronic communication channels (such as sending SMS or making phone calls) are subject to the special discipline originating from Directive 2002/58/EC, transposed into Italian law with Title X of the Code. In particular, reference is made to what is provided for by Article 130 of the Code, according to which the sending of communications using automated methods is permitted only with the consent of the contracting party or user, and a derogation can only be admitted in the case where the email address – and only the email address – has been provided by the data subject in the context of a sale of similar goods or services.

Similar considerations must be made for telemarketing activities, which are also conducted through electronic communication channels and thus, falling within the scope of Directive 2002/58/EC, can only be carried out based on suitable consent or – the only admitted derogation – using telephone numbers that are present in telephone directories and not registered in the Registry.

Opposition Public.

Finally, even if one were to admit, for the sake of argument, the possibility of relating the processing to legitimate interest – which E-Campus has invoked belatedly, having failed to document the possession of suitable consents – it would have been necessary for the data controller to demonstrate (and it has not done so) that it had carried out thorough assessments, prior to the processing, to prove the existence of certain requirements:

- a) the existence of a legitimate interest of the controller or third parties that must be connected to a concrete situation and not merely hypothetical;
 - b) the necessity of carrying out the processing to satisfy that interest and the proportionality of the intervention;
 - c) the demonstration that the controller has conducted a balancing test to ensure that the rights and freedoms of the data subjects do not prevail over the legitimate interest of the controller or third parties.
- For these reasons, it is believed that there has been a violation of Articles 6, paragraph 1, letter a) and 7, paragraph 1 of the Regulation, as well as Article 130 of the Code, and consequently, it is necessary, pursuant to Article 58, paragraph 2, letter d) of the Regulation, to order the controller to verify the technical and organizational measures adopted for the processing of personal data for promotional purposes, even in the case of outsourcing to third parties, in order to ensure and be able to document that such processing occurs based on suitable consent.

Regarding any databases already established, pursuant to Article 58, paragraph 2, letter f) of the Regulation, it is necessary to impose a ban on processing for promotional purposes of data for which the University is unable to document the possession of suitable consent.

Furthermore, considering the conduct exhibited in the cases at hand, the prerequisites for the application of an administrative monetary sanction pursuant to Article 58, paragraph 2, letter i) of the Regulation are found.

3.3 Data retention periods for promotional purposes

In the defense memorandum dated July 28, 2022, the University stated that the data of Ms. XX were acquired by the co-controller XX on June 21, 2016. According to the complainant's statements, such data were used for promotional purposes at least until January 2022, when she filed a complaint with the Authority. It follows that this University has used such data for over five years and has interrupted the processing only after the intervention of the Authority. Similarly, the notifier XX stated that she has been receiving promotional calls for six years.

From the examination of the privacy notice published in February 2023 on the website www.uniecampus.it (see point G of the notice), the retention period of the data for promotional purposes was not indicated specifically nor distinguished from other purposes, and it was only described that “for commercial purposes, taking into account the legitimate interest of the Controller to retain the personal data collected to offer goods and services deemed of interest to you, the personal data will be retained in a form that allows the identification of the data subjects for a period necessary to achieve said interest and precisely until the completion of enrollment, including data collected from third parties and/or co-controllers.” As of June 28, 2023, this passage in the notice has not been modified.

It remains to be noted that in the cases at hand, it does not appear that the data subjects had a contractual relationship with the University that would suggest a possible enrollment; regarding the retention periods of the data for promotional purposes, the Authority has already clarified that “consent to the processing of personal data for promotional purposes, as the maximum expression of individual self-determination, must first be considered separate and not conditioned by the existence or non-existence of a contractual relationship and must be deemed valid, regardless of the time elapsed, as long as it has been correctly obtained initially and remains valid in light of the applicable regulations at the time of processing as well as the retention periods established by the controller, and indicated in the notice, in compliance with Article 5, paragraph 1, letter e) of the Regulation” (see provision of October 15, 2020, web doc no. 9486485).

In this case, the notice merely indicates, in an indefinite and exemplary manner, some conditions for identifying the retention periods by referring to the legitimate interest of the data controller (improperly cited and in any case not exempting from the obligation to determine in advance the retention periods) “and precisely until the completion of enrollment.”

This method, therefore, does not meet the transparency conditions set forth in the Regulation and consequently does not allow the data subjects to fully understand the processing methods. Therefore, a violation of Article 13, paragraph 2, letter a) of the Regulation is noted.

Furthermore, the retention period indicated in the complaints – approximately 6 years (but interrupted only by the investigations of the Authority) – seems excessive in relation to processing for promotional purposes, especially since, in the absence of a preliminary assessment by the controller justifying and limiting the retention periods of the data, there is a risk that they may be retained indefinitely.

It should instead be recalled that, in accordance with the provisions of Article 5, paragraph 1, letter e) of the Regulation...

Regulation, the retention is permitted as long as it is necessary for the achievement of the purposes for which the data was collected. Indefinite retention, which is not permitted by the regulations, or excessively prolonged retention, may not be justified since the longer the retention period of the data, the more likely it is that the consent obtained will become outdated, diminishing the original interest in receiving promotional messages and, therefore, the expectations of the data subject regarding the processing, without prejudice to what is provided by the regulatory framework that establishes and updates the Public Opposition Register, through which data subjects can revoke all consents previously given. Moreover, even from a commercial perspective, the utility of the processing (and thus the return on investment) is inversely proportional to the passage of time. It is therefore the responsibility of the data controller to make such assessments before deciding the retention period of the data, both in terms of quantification (how long the data is retained) and the start date of the retention period (indicating the moment from which to begin counting the time).

Regarding this latter aspect, a violation of Article 5, paragraph 1, letter e) of the Regulation is noted, and consequently, for these reasons, pursuant to Article 58, paragraph 2, letter d) of the Regulation, it is necessary to order the data controller to establish appropriate retention periods for personal data and to communicate this to the data subjects through the privacy notice. Furthermore, considering what has been noted so far and the absence of corrective measures even after the Authority's objections, with a deterrent intent, the conditions for the application of an administrative monetary sanction pursuant to Article 58, paragraph 2, letter i) of the Regulation are found.

3.4 Failure to respond to the Authority's information requests

As described in the introduction, on two occasions and months apart, the Office made requests to the University pursuant to Article 157 of the Code, attempting in one case to prompt a response through the email contacts indicated in the privacy notice (contacts which included that of the data protection officer). Since both requests went unanswered, it was necessary to involve the Guardia di Finanza for the notification of the initiation of the procedure and the same information requests. Regarding the reasons for these failures to respond, the University has never provided justifications either in the defensive memoranda produced or during the hearing held on December 19, 2022, which was granted precisely to allow for a defense regarding the objection of the failure to respond (as no objections had yet been made on the merits). In fact, during that hearing, the lawyer delegated by the University, referring solely to the response provided for the first information request (related to the complaint of XX), hypothesized that the University had not responded due to a mere oversight, reserving the right to conduct further checks. The outcome of such checks was never communicated, and nothing was stated regarding the fact that the University had also failed to respond to the second request (related to the complaint of Mr. XX). Therefore, noting the violation of Article 157 of the Code, it is deemed that the conditions for the application of an administrative monetary sanction pursuant to Article 58, paragraph 2, letter i) of the Regulation are present.

4. ORDER FOR THE APPLICATION OF THE ADMINISTRATIVE MONETARY SANCTION

Based on the above, several provisions of the Regulation and the Code have been violated in relation to processing activities carried out by the University E-Campus, for which it is necessary to apply Article 83, paragraph 3, of the Regulation, according to which, if, in relation to the same processing or related processing, a data controller violates, with intent or negligence, various provisions of the Regulation, the total amount of the administrative monetary sanction does not exceed the amount

specified for the most serious violation, with the consequent application of only the sanction provided for in Article 83, paragraph 5, of the Regulation. For the purposes of quantifying the administrative sanction, the aforementioned Article 83, in setting the maximum penalty at the sum of 20 million euros in paragraph 5, specifies the methods for quantifying the aforementioned sanction, which must “in any case [be] effective, proportionate, and dissuasive” (Article 83, paragraph 1, of the Regulation), identifying, for this purpose, a series of elements, listed in paragraph 2, to be evaluated when quantifying the relative amount.

In fulfillment of this provision, taking into account the economic-financial information contained in the financial statements as of December 31, 2021, produced by the University in its defense, the following aggravating circumstances must be considered:

1. the duration and severity of the processing, which lasted for years and was interrupted only following the intervention of the Authority, which involved sending unwanted promotional messages to data subjects without any consent and without any possibility of obtaining the cessation of the conduct (Article 83, paragraph 2, letter a), of the Regulation);
2. the severely negligent nature of the violations since the University has shown that it did not take into account the rights of the data subjects, to whom it did not provide timely and adequate responses despite already being aware of numerous complaints directed to the controller even before the Authority (Article 83, paragraph 2, letter b), of the Regulation);
3. the degree of responsibility of the controller, considering that it did not acknowledge having adequate technical and organizational measures to avoid the repetition of the contested conduct nor did it consider it necessary to intervene after the allegations made by the Authority (Article 83, paragraph 2, letter d) of the Regulation);
4. the low degree of cooperation with the Supervisory Authority, if not a real obstacle to its activity, having – without providing any justification – failed to respond on two occasions and having requested to be heard, only to continuously postpone the date of the hearing, which was ultimately missed without justification; such conduct has resulted in unnecessary commitment of public resources and an extension of the procedure's timeline in light of many aspects that have never been clarified by the data controller, considering that, despite the allegations made, the University has not adopted any measures to correct its conduct (Article 83, paragraph 2, letter f) of the Regulation).

As mitigating factors, it is deemed appropriate to take into account:

1. the number of affected individuals involved (given that only two complaints have been received) and the low level of damage suffered by them (Article 83, paragraph 2, letter a) of the Regulation);
2. the absence of previous similar violations committed by the data controller (Article 83, paragraph 2, letter e) of the Regulation);
3. the nature of the data processed, consisting of common personal and contact data (Article 83, paragraph 2, letter g) of the Regulation).

In light of the aforementioned elements, assessed as a whole, it is deemed appropriate to determine the amount of the administrative fine provided for by Article 83, paragraphs 4 and 5 of the Regulation, in the amount of €75,000.00 (seventy-five thousand), equal to 0.375% of the maximum administrative fine of €20 million, for the violations described in paragraph 3 of this provision, as an administrative monetary sanction deemed, pursuant to Article 83, paragraph 1, of the Regulation, effective, proportionate, and deterrent also considering the economic capabilities of the data controller.

It is also deemed necessary to apply the ancillary sanction of publication on the Authority's website of this provision, as provided for by Article 166, paragraph 7, of the Code and Article 16 of the Authority's Regulation No. 1/2019, in consideration of the scope of the violations.

It is noted that the conditions set forth in Article 17 of the Authority's Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers assigned to the Authority, are met for the annotation of the violations identified herein in the Authority's internal register, as provided for by Article 57, paragraph 1, letter u) of the Regulation.

ALL OF THE ABOVE CONSIDERED, THE AUTHORITY

pursuant to Article 57, paragraph 1, letter f), of the Regulation, declares unlawful the processing described in the terms set forth in the reasoning carried out by the Telematic University E-Campus, based in Como, via Isimbardi No. 10, VAT No. 03227780131, and consequently:

- a) pursuant to Article 58, paragraph 2, letter d) of the Regulation, orders the data controller to review its technical and organizational measures, also through the provision of appropriate instructions to those responsible for processing, in order to ensure that requests from data subjects are timely and suitable to meet their requests;
- b) pursuant to Article 58, paragraph 2, letter d) of the Regulation, orders the data controller to verify the technical and organizational measures adopted for the processing of personal data for promotional purposes, even in the case of outsourcing, in order to ensure and be able to document that such processing occurs based on appropriate consent;
- c) with regard to any databases already established, pursuant to Article 58, paragraph 2, letter f) of the Regulation, imposes a ban on processing for promotional purposes of data for which the University cannot document possession of appropriate consent;
- d) pursuant to Article 58, paragraph 2, letter d) of the Regulation, orders the data controller to establish appropriate retention periods for personal data, communicating this to the data subjects through the privacy notice;
- e) pursuant to Article 157 of the Code, orders the data controller to inform the Authority, within 30 days from the notification of this provision, of the initiatives undertaken to implement the imposed measures; any failure to comply with the provisions of this point may result in the application of the administrative monetary sanction provided for by Article 83, paragraph 5, letter e) of the Regulation;

ORDERS

pursuant to Article 58, paragraph 2, letter i), of the Regulation, the Telematic University E-Campus, represented by its legal representative, to pay the sum of €75,000.00 (seventy-five thousand) as an administrative monetary sanction for the violations indicated in the reasoning; it is noted that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed sanction.

ORDERS

the aforementioned University, in the event of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of €75,000.00 (seventy-five thousand), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981;

DISPOSES

- a) pursuant to Article 166, paragraph 7, of the Code, the

****Full publication of this provision****

on the website of the Authority;

- b) pursuant to Article 17 of the Authority's Regulation No. 1/2019, the annotation in the internal register of the Authority, as provided for by Article 57, paragraph 1, letter u) of the Regulation, of the violations and the measures adopted.

It is reminded that, pursuant to Article 170 of the Code, anyone who, being obliged, does not comply with this prohibition on processing is punished with imprisonment from three months to two years and that, in case of non-compliance with the same provision, the sanction referred to in Article 83, paragraph 5, letter e) of the Regulation is also applied in administrative proceedings.

Pursuant to Article 78 of Regulation (EU) 2016/679, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be filed with the ordinary judicial authority, with a petition submitted to the ordinary court of the place where the data controller resides, or, alternatively, to the court of the place of residence of the data subject, within

thirty days from the date of communication of the provision itself, or sixty days if the appellant resides abroad.

Rome, July 18, 2023

THE PRESIDENT

Stanzione

THE RAPPORTEUR

Cerrina Feroni

THE SECRETARY GENERAL

Mattei

1) See, among the most recent, provision No. 9 of January 11, 2023 at www.garanteprivacy.it, doc web No. 9861941 and provision No. 202 of May 17, 2023, doc web No. 9899880.